

Krishi Utpadan Mandi Samiti & Another v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 2 November 2023 · 2023:AHC:210509-DB · Writ - C No. 24628 of 2023 · **Writ petition dismissed; recovery left undisturbed after the consumer accepted the corrected bill**

HEADNOTE

Where a consumer, told on 18 June 2018 of compounding charges, a permanent-disconnection fee and arrears, later receives a bill of 24 October 2018 for Rs 1,13,59,073 sent on the footing that earlier bills were erroneous, and pays Rs 69,56,667 of it, the writ court will not stop recovery on the plea that further bills ought not to have been generated because permanent disconnection had taken place on 18 June 2018. The Court found that the petitioners had acceded to that corrected demand. An earlier writ, Writ-C No. 17752 of 2022, had been disposed of on 30 June 2022 by sending them to the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005, and his order of 6 August 2022 required Rs 44,02,436. No interference is warranted. The recovery now being made cannot be interfered with, and the writ is dismissed. The Court did not construe clause 6.5, recompute the figures, or decide whether the connection was in fact disconnected on 18 June 2018.

FACTUAL SUMMARY

Krishi Utpadan Mandi Samiti and another applied on 19 April 2018 for permanent disconnection of their electricity supply and repeated the request on 14 June 2018. On 18 June 2018 the Electricity Department required compounding charges of Rs 10,000, a permanent-disconnection fee of Rs 1,000, and arrears of Rs 19,59,909. The writ alleges that even after payment of those arrears the connection was not disconnected. It is not disputed that the petitioners did not then move the High Court or any authority.

On 22 March 2022 a recovery certificate issued. They filed Writ-C No. 17752 of 2022, disposed of on 30 June 2022 with a direction to approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. His order of 6 August 2022 required Rs 44,02,436, and recorded that a bill corrected on 24 October 2018 had fixed Rs 1,13,59,073, of which Rs 69,56,667 was paid on 30 November 2018. This writ challenges that recovery on the plea that no further bills could be raised after permanent disconnection on 18 June 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::permanent-disconnection

Acceptance of a later corrected bill bars a writ to stop recovery on the ground that permanent disconnection on an earlier date should have stopped further bills

QUESTION

Will the writ court interfere with recovery where the consumer says permanent disconnection on 18 June 2018 should have stopped further bills, but the consumer later accepted a corrected bill and paid a substantial part of it?

HOLDING

No. The petitioners argued that permanent disconnection had taken place on 18 June 2018, so further bills ought not to have been generated. The Electricity Department submitted that a bill of Rs 1,13,59,073 generated on 24 October 2018, on the footing that earlier bills had been sent erroneously, had been acceded to, and that Rs 69,56,667 had been paid, so it did not lie in the petitioners' mouth to say that disconnection ought to have been done as per the communication of 18 June 2018. The Court found that the petitioners had acceded to that demand and had paid Rs 69,56,667. No interference is warranted. The recovery now being made cannot be interfered with. The writ is dismissed. The demand under challenge followed Writ-C No. 17752 of 2022, disposed of on 30 June 2022 with a direction that the Executive Engineer decide under clause 6.5, and his order of 6 August 2022 requiring Rs 44,02,436. ¶ 3-6

QUALIFIER

The Court did not hold that permanent disconnection arises only on payment of all dues, and did not decide whether the connection was in fact disconnected on 18 June 2018. The petition alleged that after payment of the arrears of Rs 19,59,909 no disconnection was done, and it was not disputed that the petitioners did not then approach any forum. The dismissal rests on acceptance of the corrected bill.

FLAG The disposing order of 2.11.2023 (Neutral Citation No. 2023:AHC:210509-DB; Siddhartha Varma and Manoj Bajaj, JJ.) is unnumbered. Paragraph numbers are sequential in that order: (1) applications of 19.4.2018 and 14.6.2018, the 18.6.2018 communication, the allegation of no disconnection after payment of Rs 19,59,909, and the undisputed failure to approach any forum; (2) recovery certificate of 22.3.2022, Writ-C No. 17752 of 2022 disposed of on 30.6.2022 under Clause 6.5, the Executive Engineer's order of 6.8.2022 for Rs 44,02,436, and the recital of the 24.10.2018 correction and the payment of 30.11.2018; (3) petitioners' argument; (4) Department's submission; (5) the Court's finding of acceptance; (6) no interference, recovery left standing, writ dismissed. Clause 6.5 is named only as the direction in the earlier writ. No numbered permanent-disconnection clause (4.38 or otherwise) is cited; keyed to UP-2005::permanent-disconnection. The same PDF contains listing orders of 21.8.2023 (Pritinker Diwaker, C.J. and Ashutosh Srivastava, J.: list after two weeks), 13.9.2023 (lawyers abstaining; list on 26.9.2023), 13.10.2023 (list on 17.10.2023) and 17.10.2023 (list on 27.10.2023). 'Counsel' and 'the recovery as is now been made' are as printed. No precedent is cited. The fingerprint has no Indian Kanoon doc-id.

PRINCIPLE TAGS

approve-and-reprobate-bars-selective-repudiation The petitioners had acceded to the bill of 24 October 2018 for Rs 1,13,59,073, sent on the footing that earlier bills were erroneous, and had paid Rs 69,56,667. They could not thereafter say that disconnection ought to have been effected as per the communication of 18 June 2018 so that further bills should not have been generated. The writ was dismissed and the recovery was left standing. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONNECTION WAS IN FACT PERMANENTLY DISCONNECTED ON 18 JUNE 2018

The writ alleged that after payment of Rs 19,59,909 no disconnection was done. Counsel argued that permanent disconnection had taken place on that date. The Department treated the plea as one that disconnection ought to have been done. The Court did not find the fact either way. ¶ 1, 3-4

NOT DECIDED — CORRECTNESS OF THE CORRECTED DEMAND OF RS 1,13,59,073, THE CREDIT OF RS 69,56,667, AND THE EXECUTIVE ENGINEER'S FIGURE OF RS 44,02,436

Recorded from the order of 6 August 2022 and from the parties. Not recomputed. Interference was refused because the corrected bill had been accepted. ¶ 2, 5-6

NOT DECIDED — WHETHER THE EXECUTIVE ENGINEER'S ORDER OF 6 AUGUST 2022 COMPLIED WITH CLAUSE 6.5 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Clause 6.5 appears only as the direction in Writ-C No. 17752 of 2022. This writ was not decided as a review of that clause. ¶ 2